

Plaintiff has filed no opposition. Proof of service is in the file, including a notice of demurrer that sets forth the hearing date and time.

On October 23, 2025, the Court continued the demurrer on the ground that Lone Tree Estates had not provided any evidence that it contacted plaintiff in order to meet and confer about the demurrer as required by Code of Civil Procedure section 430.41(a). Counsel for Lone Tree Estates complied, but plaintiff did not respond. Accordingly, the demurring party has complied so far as is possible.

Based on the arguments submitted by demurring party, the **demurrer is sustained, with leave to amend.**

12. 9:00 AM CASE NUMBER: MSC18-01132

CASE NAME: SCHWENDEMAN VS. TRAVEL STAFF

***HEARING ON MOTION IN RE: COMPLIANCE HEARNIG SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Based on the declaration of the Settlement Administrator, the settlement has been largely implemented, but the uncashed distributed paychecks will not be voided until March 10, 2026. **A further compliance hearing is set for March 26, 2026, 9:00 a.m. Plaintiff is to provide a declaration one week before the hearing updating the implementation.** The 5% of the attorney's fees currently held by the settlement administrator shall continue to be withheld pending further court order at the compliance hearing.

13. 9:00 AM CASE NUMBER: MSC20-02497

CASE NAME: HOPE, ET AL. VS TAYLOR MORRISON OF CA

HEARING IN RE: MOTION FOR TERMINATING SANCTIONS OR, IN THE ALT, EVIDENCE PRECLUSION AT TRIAL FILED BY DEFT/XCOMP TAYLOR MORRISON

FILED BY:

TENTATIVE RULING:

Five-Year Statutory Deadline for Trial

As a threshold matter, to the extent that compliance with the five-year statute is an issue, during the time period of March 23, 2021 to November 15, 2023, the running of the time period was tolled. (C.C.P. § 583.40(b).) Taylor Morrison argues that the stay was required by plaintiffs' failure to satisfy the pre-litigation requirements of Civil Code section 895, and was not a complete stay of the action, because alternative discovery was proceeding. It relies on *Bruns v. E-Commerce Exchange Inc.* (2011) 51 Cal.4th 717, which states that the section applies only to "complete stays that suspend all proceedings in the action." The Order granting the stipulated stay, however, states that "The *entirety of this action* shall be stayed upon execution of the Order by the Court[.]" It further provides that if resolution is not reached "the stay on this litigation shall be lifted by the Court, upon the written request of either Plaintiffs or Defendant, and Plaintiffs *shall then have the right to proceed* with this action[.]" (Stipulated Order of March 23, 2021, Par. 4 [emphasis added].) For purposes of Code of Civil Procedure section 583.40(b), engaging in the Civil Code section 895 "pre-litigation" process did not render the stay anything less than a complete or full stay.